



Bill Number: H.B. 2749

Rogers Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

- Adds a delayed repeal date of October 1, 2028.

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2749
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{Orange lowercase underlining in double curly brackets} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{Orange lowercase strikeout in double curly brackets}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 6, Arizona Revised Statutes, is
3 amended by adding section 13-604.01, to read:

4 13-604.01. Class 4, 5 or 6 felony; misdemeanor designation;
5 definition

6 A. NOTWITHSTANDING ANY OTHER PROVISION OF THIS TITLE, IF A PERSON
7 IS CONVICTED OF A CLASS 4, 5 OR 6 FELONY NOT INVOLVING A DANGEROUS
8 OFFENSE, THE COURT MAY ENTER JUDGMENT OF CONVICTION FOR A CLASS 1
9 MISDEMEANOR IF THE COURT DETERMINES ALL OF THE FOLLOWING:

10 1. THE PERSON HAS NOT PREVIOUSLY BEEN CONVICTED OF ANY FELONY
11 OFFENSE.

12 2. THE OFFENSE DID NOT INVOLVE A VICTIM.

13 3. THE PERSON HAS COMPLETED ALL OF THE TERMS AND CONDITIONS IMPOSED
14 BY THE COURT FOR THE CONVICTION, INCLUDING FULL PAYMENT OF ALL MONETARY
15 OBLIGATIONS.

16 4. AT LEAST FIVE YEARS HAVE PASSED SINCE THE ~~[PERSON WAS CONVICTED]~~
17 [COMPLETION OF THE PERSON'S SENTENCE], AND THE PERSON HAS NOT BEEN

1 CONVICTED OF A SUBSEQUENT MISDEMEANOR OFFENSE INVOLVING A VICTIM OR A
2 SUBSEQUENT FELONY OFFENSE DURING THAT TIME.

3 5. ENTERING THE JUDGMENT OF CONVICTION FOR A CLASS 1 MISDEMEANOR IS
4 IN THE INTEREST OF JUSTICE.

5 [B. THIS SECTION DOES NOT APPLY TO A PERSON WHO IS CONVICTED OF A
6 VIOLATION OF SECTION 13-2910, 13-3102 OR 13-3821.]

7 [B.] [C.] FOR THE PURPOSES OF THIS SECTION, "VICTIM" HAS THE SAME
8 MEANING PRESCRIBED IN SECTION 13-4401.

9 <<Sec. 2. Delayed repeal

10 {{Section 13-604.01, Arizona Revised Statutes, as added by this act,
11 is repealed from and after September 30, 2028.}}>>

12 Enroll and engross to conform

13 Amend title to conform

WENDY ROGERS

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